

		response in most instances, if the trial court is not prepared to address the merits of the motion in light of the deficient separate statement, is to give the opposing party an opportunity to file a proper separate statement rather than entering judgment against that party based on its procedural error.”].) Based on the Cross-Complainant’s failure to file a timely opposition or file a Separate Statement in Opposition, the Court will continue the hearing to allow Cross-Complainant to file a Separate Statement and give Cross-Defendant an opportunity to file reply papers. Cross-Complainant to file a separate statement no later than 20 days before the continued hearing. Cross-Defendant to file a reply no later than 11 days before the continued hearing. Moving party to give notice.
14	Quick Bridge Funding, LLC v. Axe Tactical LLC 2025-01480360 Motion to Summary Judgment/Adjudication	Plaintiff Quick Bridge Funding, LLC’s Motion for Summary Judgment is GRANTED. Code of Civil Procedure section 437c(c) states, “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” Plaintiff moves for summary adjudication on its 2nd and 3rd causes of action for Breach of Guaranty against Williams and Axe 2.0. There is no triable issue of fact as to the 2nd and 3rd causes of action. The elements of a claim for breach of contract are “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>D’Arrigo Bros. of California v. United Farmworkers of America</i> (2014) 224 Cal.App.4th 790, 800.) As to the 2nd cause of action, Plaintiff has demonstrated (1) the existence of the guaranty with Williams, (2)

		Plaintiff's performance, (3) Williams's breach of the Guaranty, and (4) resulting damages in the amount of \$206,411. (Otero Decl., ¶¶ 4, 6, 8, and 9.) As to the 3rd cause of action, Plaintiff has demonstrated (1) the existence of the Guaranty with Axe 2.0; (2) Plaintiff performance; (3) Axe 2.0's breach of the Guaranty; and (4) resulting damages in the amount of \$206,411. (Otero Decl., ¶¶ 5, 6, 8, and 9.) Defendants have not opposed the Motion. Thus, summary judgement is proper because there is no dispute of material facts.
15	Trabuco Highlands Community Association v. Loeffler 2022-01297235 Motion to Expunge Lis Pendens	The motion of defendant Molly Loop, LLC, for an order expunging the lis pendens against certain residential property that it owns in Ladera Ranch that was recorded on January 12, 2023 and for an award of attorneys' fees is DENIED. The request of responding plaintiff Trabuco Highlands Community for an award of attorneys' fees is also DENIED. Discussion. In this consolidated action, defendant Molly Loop, moves in case no. 2022-01298111 for an order expunging the lis pendens against certain residential property that it owns in Ladera Ranch that was recorded on January 12, 2023. It also moves for an award of attorneys' fees of \$5980.00 incurred in bringing the motion. Plaintiff Trabuco Highlands Community Association opposes the motion and asks that it be awarded attorneys' fees of \$7,362.50. In its motion, defendant contends that, notwithstanding the cause of action for fraudulent conveyance in the complaint, plaintiff has not set forth a "real property claim" that can support a lis pendens because plaintiff seeks damages. It also contends that plaintiff cannot establish that it has a substantial probability of prevailing on its action. The motion was filed on May 11, 2026, exactly a week after the Court issued its order denying a motion by co-defendant Jennifer Loeffler to expunge the same lis pendens and for attorneys' fees and costs. (See minute order of May 4, 2026, ROA 647.) In its minute order, the Court rejected both contentions, stating as follows in its analysis: